

Ministry of Electronics and Information Technology, Indian Computer Emergency Response Team (Medical Facilities for the Officers and Employees) Rules, 2019

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Ministry of Electronics and Information Technology, Indian Computer Emergency Response Team (Medical Facilities for the Officers and Employees) Rules, 2019

Rule

MINISTRY-OF-ELECTRONICS-AND-INFORMATION-TECHNOLOGY-INDIAN-COMPUTER-EMERGENCY-RESPONSE-TEAM-MEDICAL-FACILITIES-FOR-THE-OFFICERS-AND-EMPLOYEES-RULES-2019 of 2019

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Ministry of Electronics and Information Technology, Indian Computer Emergency Response Team (Medical Facilities for the Officers and Employees) Rules, 2019

Published vide Notification No. G.S.R. 841(E), dated 07.11.2019

Last Updated 18th November, 2019

G.S.R. 841(E). - In exercise of the powers conferred by clause (ze) of sub-section (2) of section 87 read with sub-section (3) of section 70B of the Information Technology Act, 2000, (21 of 2000), the Central Government hereby makes the following rules for providing the medical facilities to the officers and employees of the Indian Computer Emergency Response Team in the Ministry of Electronics and Information Technology, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Ministry of Electronics and Information Technology, Indian Computer Emergency Response Team (Medical Facilities for the Officers and Employees) Rules, 2019.

(2)

They shall come into force from the date of their publication in the official Gazette.

2.

Definition.

(1)

In these rules, unless the context otherwise requires; -

(i)

"Act" means the Information Technology Act, 2000 (21 of 2000

);

(ii)

"officers and employees" means officers and employees (except the Director-General) of the Indian Computer Emergency Response Team as referred to in sub-section (2) of section 70B of the Act; and

(iii)

"ICERT" means Indian Computer Emergency Response Team appointed under sub-section (1) of section 70B of the Act.

(2)

Words and expressions not defined in these rules but defined in the Act shall have the same meaning as assigned to them under the Act.

3.

Medical facilities.

- The officers and employees of the Indian Computer Emergency Response Team shall be eligible to get following medical facilities, namely: -

(1)

Outdoor treatment. - (i) The reimbursement of outdoor medical expenses during the year shall be limited to the actual expenses or one month's pay as on the 1st January of the year (Basic Pay + Dearness Allowance), whichever is less, and the release of increment or promotion during the year shall not affect the limit as on the 1st January:

Provided that the said ceiling shall not apply in case of treatment for diseases such as Cancer, Diabetes, Mental diseases, Poliomyelitis, Cerebral Palsy and Spastics, Tubercular diseases, Leprosy, Thalassaemia Major, Hepatitis C and D for which special medical treatment facility is required.

(ii)

The claim for the outdoor medical expenses shall be supported by the Doctor's prescription alongwith the original cash memos or bills for treatment by the Doctor and purchase of medicines.

(iii)

For officers and employees who joined the ICERT during the year, the annual entitlement shall be restricted on pro-rata basis.

(iv)

The outdoor treatment shall be taken from Government Hospital or Authorised Medical Attendants or hospitals empanelled under the Central Government Health Scheme or the Central Government (Medical Attendance) Rules, 1944.

(2)

Indoor treatment. - (i) The officers and employees who reside in the Central Government Health Scheme covered area shall be eligible for reimbursement of expenses incurred towards medical treatment at Government hospitals or hospitals empanelled under the Central Government Health Scheme.

(ii)

The officers and employees who reside outside the Central Government Health Scheme covered areas, shall be eligible for reimbursement of expenses incurred towards medical treatment at Government hospitals or hospital empanelled under the Central Government Health Scheme or the Central Government (Medical Attendance) Rules, 1944, as the case may be, on the prescription of the empanelled Authorised Medical Attendant.

(iii)

For the purposes of clauses (i) and (ii), the officers and employees shall be eligible for reimbursement of indoor medical treatment expenses including hospital accommodation and nursing home facility on similar rates as applicable to the Central Government employees drawing equivalent pay, under the Central Government Health Scheme or the Central Government (Medical Attendance) Rules, 1944, as the case may be.

(iv)

The Medical expenses incurred by the officers and employees availing medical treatment in emergency conditions from non-empanelled private hospitals, shall be allowed on the similar rates as applicable to a Central Government Health Scheme covered city and in case of non- Central Government Health Scheme city, on similar rates as applicable to the nearest Central Government Health Scheme covered city. as the case may be, or on the actual basis, whichever is less.

4.

Other matters relating to medical facilities.

- The other matters relating to the medical facilities for which no specific provisions has been made under these rules, shall be regulated in accordance with the provisions of the Central Government Health Scheme or the Central Service (Medical Attendance) Rules, 1944, as the case may be, as applicable to the Central Government employees drawing equivalent pay.

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